

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

amf
Date: 5/10/21

Contract Modification: #2

Project: Happy Jack Landfill Phase 2, Cells 1 and 2 and Construction and Cell 3 Excavation
Earthworks (Geosynthetic Procurement Base Bid)

Project Number: Contract # 7258

Contractor: Northwest Linings & Geotextile Products, Inc.

Date Prepared: May 7, 2021

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

A Force Majeure cost increase request due to unprecedented condition in the polypropylene and resin market.

II. New Contract Items

No new items.

III. Schedule

No change to contract length.

IV. Summary

Original Contract Amount	\$405,483.00
Previous Modifications	\$29,726.76
Contract Amount Prior to this Modification.....	\$435,209.76
This Modification	\$77,861.52
New Contract Amount	\$513,071.28

V. Approvals

DATE: _____

City of Cheyenne

Mayor Patrick Collins

/_____
/ATTEST: City Clerk Kristina F. Jones

Recommend approval by City Project Manager / Accepted by Consultant

Solid Waste Professionals of Wyoming, LLC

PLANNING • PERMITTING • DESIGN • QA/QC



DATE: May 6, 2021

TO: Mr. Craig LaVoy, P.E.
Deputy Public Works Director

FROM: Travis Evans, PE

RE: Happy Jack Landfill Cells 1 and 2 Construction and Cell 3 Excavation Earthworks Project
Force Majeure Cost Increase for GCL

BACKGROUND

On March 19, 2021, Northwest Linings (NWL), the geosynthetics supplier (supplier) for the Happy Jack Landfill Cells 1 and 2 Construction and Cell 3 Excavation Earthworks Project (Project), submitted a force majeure cost increase for GCL. In recent months, the volatility of the resin market and lack of availability has caused several force majeures to impact the pricing and production lead times on polypropylene and polyethylene derived products. Due to unprecedented market volatility, CETCO (GCL manufacturer) reserves the rights to adjust pricing and delivery schedule during this force majeure. The revised quotation adjustment directly from CETCO will increase \$0.1243/SF for GCL. This is a total increase of \$77,861.52.

The unprecedented volatility in the polypropylene and polyethylene resin market, driven by unforeseeable production and raw material impacts affecting the entire plastics industry, is expected to remain highly volatile. CETCO indicates that market volatility will not be resolved in the short term and expects increasing volatility for the foreseeable future.

Solid Waste Professionals of Wyoming (SWPW) evaluated options for the City to consider regarding this matter as described below.

OPTIONS

There are two options that the City has regarding NWLs request for a GCL price increase; postponing the geosynthetics portion of the project or issuing a change order to compensate NWL for the GCL price increase as described below:

- **Option 1 – Postpone the Geosynthetics Installation**

In the event the City postpones the geosynthetics portion of the project until next year, a re-stocking fee could apply to the produced materials not used and would need to re-evaluate the GCL timeline for a revised ready date. NWL cannot guarantee pricing/availability for the Project if it postponed. Additionally, the earthworks contractor would demobilize off the site which

would entail an additional cost to mobilize the earthworks contractor back to the landfill to complete the Project.

- **Option 2 - Approve A Change Order to Allow for GCL Price Increase**

Attachment A includes force majeure notices from polypropylene resin suppliers and geosynthetic manufacturers, the price of GCL has demonstrated an increase throughout the entire industry.

If the City approves a change order to allow for the GCL price increase, the Furnish GCL pay item would be updated to a unit price of \$0.483 for a total price of \$302,551.20, which is an increase of \$77,861.52 above the original contract amount.

The 2nd lowest bidder Clean Air and Water Systems (CAWS) submitted their initial bid with a unit price of \$0.395 for a total price of \$233,445.00. CAWS was contacted and informed us that they would also be asking for increases due to force majeure in an amount similar to that presented by NWL.

Attachment

47A-002-001

ATTACHMENT A



2870 Forbs Ave | Hoffman Estates, IL 60192 | United States

Tel: 847.851.1426 | Fax: 847.851.1291 | Toll Free: 800.527.9948 x1426 | www.cetco.com

February 26, 2021

Subject: Pricing & Market Conditions

Valued Customers,

Due to unprecedented conditions in the polypropylene and resin markets, driven by unforeseeable market dynamics affecting the entire plastics industry, the market continues to exhibit extreme volatility. This is currently impacting the entire geotextile industry as it relates to the availability and costs of polypropylene raw materials. Our best line of site and market intel indicates that this will not resolve in the short term, and that we, as an industry, should expect this to be a longer term impact, affecting the foreseeable future.

Unfortunately, because of these volatile market conditions, and the ever increasing, uncontrollable costs related to securing raw materials, CETCO® reserves the rights set forth in our Terms and Conditions, to adjust our pricing and delivery schedule. We are taking all available measures necessary to ensure an uninterrupted supply chain, as economically possible. Your territory sales representative will continue to provide support and updates on each of your individual projects.

We appreciate your business, we look forward to our continued relationship, and the opportunity to provide you with high quality products and services. We will continue to monitor the market and reevaluate our price points based on the best available information. Our goal remains to provide you, our valued customers, with the most competitive pricing available. Should you have any questions, please do not hesitate to reach out to me at your convenience.

My best regards,

Hilary Walker
North America Area Manager
Environmental Products

CETCO

A MINERALS TECHNOLOGIES COMPANY



OUR STANDARDS. YOUR PEACE OF MIND.



March 11, 2021

Dear Valued Propex Customer:

Propex is continuing to follow the petroleum market conditions. Refined oil production is still hampered by the recent winter storm in Texas causing already low inventories to be severely impacted. The supply of resin has continued to decline forcing allocations, delayed shipments or cancellations. Additionally, following Winter Storm Uri, resin suppliers informed us of significant cuts in allocated supply. Higher cost resin procured from the spot markets will facilitate our supply to you, our customer. These conditions have driven price pressures across all propylene markets. As a result, Propex is announcing a price increase effective March 26, 2021.

Required Action:

- 15% increase on non-woven products
- 12% increase on woven products (monofilament and high flow)
- 10% increase woven products (slit tape)
- 10% increase on all Propex erosion control products

Orders received by March 25, 2021 and shipped by April 1, 2021 will be sold at the current price levels. As aggresses as the series of price increases seem to be, these increases fail to keep pace with resin markets.

Given these extremely tight conditions and limited resin supply and available products produced, Propex reserves the right to allocate shipments at the current pricing. Pre-buy orders clearly above "reasonable" and customary order rates will be subject to our allocation process. The limited supply and cost pressure of raw materials may remain in the industry longer term.

Propex will continue to utilize our market leading production and sourcing capabilities in an effort to support all our customers.

Sincerely,

Michael K. Gorey
President & CEO



January 11, 2021

Dear Valued Propex Customer:

As mentioned several times dating back to last summer, declining demand for oil refined products results in less propylene supply. The propylene inventory continues to decline. Since the propylene stocks are the primary source for polypropylene production, supply to our industry is declining.

Currently, there are concerns about resin and fiber availability within our industry. Shortages of products and long lead times are already happening and expect them to worsen. As expected, the supply shortage of resin is confirmed. Global resin markets are reacting dramatically with significant resin price increases. Due to the now acute resin shortage and related demand for refined oil products, Propex is announcing a price increase effective February 1, 2021.

Required Action:

- 15% increase on non-woven products
- 10% increase on woven products (monofilament and high flow)
- 5% increase woven products (slit tape)
- 10% increase on all Propex erosion control products

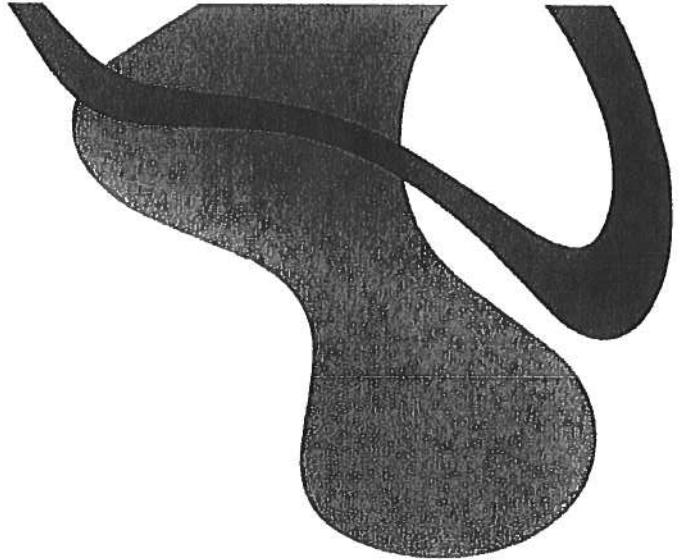
Orders received by January 22, 2021 and shipped by January 29, 2021 will be sold at the current price levels.

Given the very tight and limited resin supply and available products produced, Propex reserves the right to allocate shipments at the current pricing. Pre-buy orders clearly above "reasonable" and customary order rates will be subject to our allocation process.

Propex is continuing to aggressively address our strong production and superior sourcing capabilities in an effort to support all our customers; however, the cost pressures of resin availability in conjunction with product available to ship will continue to be longer term in nature.

Sincerely,

Michael K. Gorey
President & CEO



To whom it may concern,

March 5th 2021

Dear Valued Customer,

The extreme weather across the US Gulf Coast have caused our petrochemical suppliers to declare Force Majeure.

The current situation and the latest update from petrochemical suppliers has worsened and will adversely impact Solmax's production capabilities and our ability to deliver under our various manufacturing and sales contracts.

Until now we have been able to manage the situation and deliver products to our customers. However, based on the latest update from Petrochemical suppliers enforcing their Force Majeure and the unprecedented chain of events that lead to Force Majeure that is beyond any parties reasonable control, we regret to inform you that Solmax must declare Force Majeure effective as today's date and no other choice but to rationalize its production mainly in its US, Canadian and Egypt facilities, but also, for specific products, in our plant in Germany, Thailand, Malaysia and China.

We will however be able to maintain a certain level of production and will maintain a close connection with our customers to support them and go through these difficult times. We will also have to adapt our pricing globally based on the petrochemical supplier change to pricing structure.

The duration of this Force Majeure is unknown and will remain in effect until Solmax can resume its normal activities without the disruptions caused by petrochemical suppliers' Force Majeure. You may rest assured that we are constantly monitoring the situation and remain in communication with the various petrochemical participants as developments occur. As soon as we have a clearer picture of the unfolding event and can better ascertain when our operations can resume to full capacity, we will notify you of any developing news.

Solmax regrets the impact this announcement may have on your activities and our Sales teams remain available to answer your questions.

Yours sincerely,

A handwritten signature in dark ink, appearing to read 'J. Vangeluwe', written over a faint, circular, textured background.

Jean Louis Vangeluwe

Chief Executive Officer - SOLMAX INC

① T +1 (450) 929-1234

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④

SOLMAX INTERNATIONAL INC
2501 PTE MARIE-VIC FORIN / VARENNES QC CANADA J2N 0J4

SOLMAX.COM



335 Athena Dr.
Athens, GA 30601
Tel 706 354 3700
Fax 706 354 3737
E-mail: - info@skaps.com

March 16. 2021

Re: Force Majeure Notice

Dear Valued Customer,

As we have communicated to you several times in recent months, the availability of raw material for SKAPS' geosynthetic products is going from bad to worse. The decline in the worldwide production of polypropylene and polyethylene coupled with the increases in demand for spunbond products to counter the COVID-19 pandemic have made the procurement of these basic feed stocks for our products difficult and uncertain. The recent weather event along the Gulf Coast, with single digit temperatures and wide spread electrical power outages, has only compounded the situation.

As we have worked through this difficult situation over the past months, SKAPS has endeavored to continue to supply products to our customers in as timely a manner as possible. However, the situation has degraded to the point where it is obvious this may no longer be possible. Our raw material suppliers (including, but not limited to, Chevron Phillips Chemical, Formosa Plastics, and LyondellBasell/Equistar Chemicals) have been forced to invoke a "Force Majeure" event due to their inability to secure basic raw materials for the resins and fibers they provide to SKAPS. Accordingly, SKAPS has no choice but to also declare a Force Majeure event effective today. We regret the impact that this may have on your business; but, under the present circumstances, we see no viable alternative.

At this time, the duration of this Force Majeure declaration is not known. Given the setbacks to the raw material production facilities along the Gulf Coast, it will be some time before the situation begins to resemble "normal." Please rest assured that we will do everything in our power to keep you supplied with our products as best as possible. SKAPS will work diligently to continue to provide you with the highest quality products, at competitive prices, in as timely a manner as possible. We will also diligently monitor the market conditions and continue to communicate with you as we work through this difficult situation. We value your business and thank you for your continued support during these times of raw material volatility.

Best regards,

A handwritten signature in black ink, appearing to be "Perry Vyas", written over a faint circular stamp.

Perry Vyas, President and CEO

SKAPS Industries



Performance by design.
Caring by choice.™

February 18, 2021

Re: Polyethylene Force Majeure Notice

Dear Valued Customer:

Chevron Phillips Chemical continues to assess the impact of the recent weather conditions on its Gulf Coast polyethylene operations and logistics. Unfortunately, it has become apparent that issues arising in connection with the winter storm and the associated outages and curtailments have impacted our planned production and delivery of polyethylene products; as such and effective immediately, Chevron Phillips Chemical is declaring force majeure on all polyethylene products.

Please be assured that Chevron Phillips Chemical is working diligently to minimize the impact of these events and return to full polyethylene deliveries as soon as possible. We are in the process of evaluating the anticipated duration of this interruption and will provide you with updates as more information becomes available. You will be contacted soon by your Chevron Phillips Chemical polyethylene sales representative with further details.

We apologize for any inconvenience to your business.

Sincerely,

A handwritten signature in dark ink, appearing to read "Jay Bickett".

Jay Bickett
VP Polymers & Sustainability



Total Petrochemicals & Refining USA, Inc.

Corporate Headquarters

February 17, 2021

Re: Total Petrochemicals & Refining USA, Inc.'s ("TPRI") Declaration of Force Majeure

Dear Valued Customer:

Effective immediately, Total Petrochemicals & Refining USA, Inc. ("TPRI") hereby announces a Force Majeure declaration with regard to the supply of polypropylene products produced from our facility in La Porte, Texas. This action is due to unusually severe weather directly resulting in power outages and the subsequent unexpected shutdown of our facility.

At this time, it is uncertain whether other providers of products and services to our facility will be impacted by this event. We are unable at this time to provide an estimate of the date we will resume normal production and delivery of products.

We appreciate your patience and understanding as we work through this situation and will provide further updates as more information becomes available.

Respectfully,

A handwritten signature in black ink, appearing to read "P. Colonna".

Paul H. Colonna, Vice President
Polymers Americas



Formosa Plastics'

Formosa Plastics Corporation, U.S.A.
9 Peach Tree Hill Road
Livingston, NJ 07039
Telephone: (973)-992-2090

February 19, 2021

Re: Excuse of Performance Declaration

Dear Valued Customer:

Formosa Plastics Corporation, U.S.A., on behalf of Formosa Plastics Corporation, Texas and Formosa Industries Corporation ("Formosa"), is experiencing significant impacts to operations at the Point Comfort, TX site due to the severe weather which began the morning of February 15, 2021. As a result of this uncontrollable event, Formosa is extending the Excuse of Performance (*Force Majeure*) on all previously announced Formolene[®] polypropylene and high density polyethylene products and is also now declaring Excuse of Performance on all remaining Formolene[®] polyethylene products.

Our teams are evaluating the impact of this event on our ability to produce and supply material. At this time, allocation of all Formolene[®] products will be implemented, and shipment delays are to be expected. Your account manager will update you on details of the allocation.

We understand the burden that this will put on your company and Formosa is making every effort to return back to normal production and distribution as quickly as possible. Thank you for your understanding and patience. Please feel free to reach out to your account manager for any additional information.

Cordially,

Simon Hwang
Director – Polyolefins Sales and Marketing

SH/my



Equistar Chemicals, LP
LyondellBasell Tower, Suite 300
1221 McKinney Street
Houston, TX 77010

Basell Poliolefinas, S. de R.L. de C.V.
Gabriel Mancera No. 1041
Col. del Valle, 03100 Mexico City
Mexico

February 22, 2021

Subject: Update Regarding Severe Winter Storm Freeze impact on Polyolefin Supply

Dear Valued Customer,

As we communicated on February 15, 2021, all of our Olefin and Polyolefin facilities have been adversely impacted by the winter storm that is currently affecting much of the United States. As a result of this adverse weather event, we were forced to declare force majeure on the supply of all Polyethylene (PE) and Polypropylene (PP), and Specialty Polyolefin products.

Equistar activated our severe weather preparedness plans in advance of the storm. Plant personnel have returned to each of our facilities, are working through thorough site assessments and are preparing plans for restart as quickly as possible while ensuring the safety of our employees, our service providers and our communities.

We want to provide the following update to keep you informed of our facilities and related logistics status:

- *Transportation:* Loading of rail cars and transit times have slowed due to challenges presented from the storm. In addition, the storm has led to lengthened lead-times and limited availability of trucking capacity.
- *Allocation of Product:* We are working through our allocation assessment for each facility, and anticipate communicating a product allocation plan for February and March this week. Allocation plans will be developed as soon as the anticipated outage period for each facility has been determined and a facility restart schedule developed. Unfortunately, we anticipate shipments of all applicable products will be limited or curtailed during the duration of this force majeure event.



We understand the burden this adverse weather event puts on your company. Rest assured, we are making every effort to return back to normal production as quickly as possible, and we will continue to keep you updated on our continued site assessments and restart efforts.

We value the trust you place in Equistar as a supplier, and we apologize for any inconvenience this may have on your business as many individuals on our teams are personally impacted by the storm and are currently without power.

As always, your Account Manager is available to address more specific questions you may have that pertain directly to your business and any order status inquiries.

Thank you.

Sincerely,

A handwritten signature in black ink, appearing to read "Howard Williams", with a stylized flourish at the end.

Howard K. Williams
Vice President, Polymer Sales and Distribution, N. America
Equistar Chemicals, LP

Cc: Equistar Sales



NEWS RELEASE

For Immediate Release

PR Contact

Feb. 19, 2021

Christian Weiland

+1 651 225 6916

caweiland@ifai.com

Geosynthetic prices increase due to spike in polypropylene resin costs

Polypropylene (PP) resin and other plastic resins have experienced a rapid price increase over the past three months, affecting the cost of geosynthetic products, according to Fred C. Chuck, P.E., executive director of the Geosynthetic Materials Association (GMA) at Industrial Fabrics Association International (IFAI). "Market conditions continue to remain highly volatile, with resin availability and pricing changing daily," says Chuck.

According to a February 9 article in *The Plastics Exchange Market Report*, "At least a half-dozen resin producers have experienced Force Majeure conditions, creating severe shortages for both polyethylene and polypropylene resins. Consequently, spot resin trading has been hyperactive as resin processors, many on supply allocation, have flocked to the spot market as they scramble to procure material."

The report continues, "Through the years, we have seen several hurricanes and petrochemical/plant fires, tariffs, economic crisis, waves of new production, sudden plant outages, numerous Force Majeure declarations and huge swings in energy and feedstock costs, but none of the previous markets, resulting from these sometimes catastrophic catalysts, compare to the extreme environment we currently engage [in]." The combination of these events has accumulated over the past two to three quarters, heavily impacting the industry.

Chuck further elaborates that the worldwide demand for personal protective equipment (PPE) to shield against the COVID-19 outbreak has caused the demand for spun-bond and needle punched nonwovens to increase dramatically. He notes, "As the economy slowed, the number of vehicular miles driven around the world has plummeted, causing oil refineries to scale back on production. This has had the side effect of lowering production of propylene, the basic feedstock of the geosynthetics raw material polypropylene."

According to Lilli Manolis Sherman, senior editor of *Plastics Technology*, "Polypropylene prices in December moved up a total of 14¢/lb, 10¢ of which was in step with propylene monomer prices and 4¢ went toward boosting supplier margins. Moreover, suppliers were looking for another 5–6¢/lb for January *in addition to* any change in the monomer contract price."

The Plastics Exchange Market Report also notes, "PP Copolymer has been the scarcest of materials and soared \$.16/lb in January, while homopolymer resins climbed \$.17/lb, catching up a penny to CoPP, which had built an extra \$.04/lb premium during the 2nd half of 2020. The rise in spot prices closely matched the January contract increase."

"Several geosynthetic manufacturers are experiencing a reluctance on the part of agencies and owners not accepting the price increase pass through from the contractors, creating a pressure point in the industry," notes Chuck, adding, "The construction cycle operates with projects quoted in a 'low-bid' environment, but do not require material procurement for months. In the past, distributors have been able to hold pricing during the longer cycle as the resin price has been less volatile."

GMA and *Geosynthetics* magazine will continue to monitor this issue and will provide future information to address the wider concerns of the GMA membership.

About Geosynthetic Materials Association

The Geosynthetic Materials Association (GMA) provides engineering support, business development opportunities, educational programming, government relations expertise and industry recognition. GMA influences specifications and lobbies on behalf of member companies. GMA targets key U.S. states to expand the geosynthetics market. The Geosynthetic Materials Association provides a network to exchange information, solve common problems and develop mutually beneficial relationships. GMA is a division of the Industrial Fabrics Association International (IFAI).

About Industrial Fabrics Association International

Industrial Fabrics Association International (IFAI) is a member-owned, member-driven trade association representing the global industrial fabrics industry since 1912. IFAI provides members with relevant information, sourcing solutions and networking opportunities to sustain and grow their business. For more information visit [IFAI.com](https://www.ifai.com).

LIST OF PLANTS WITHIN TEXAS AFFECTED : REFINERY, CRAKER & RESIN

Dow	Freeport, Texas	Propane dehydrogenation (PDH)	<u>Shutdown</u>
Enterprise	Mont Belvieu , Texas	Propane dehydrogenation (PDH)	<u>Process upset</u>
Flint Hills	Houston, Texas	Propane dehydrogenation (PDH)	<u>Restarting</u>
Alon USA	Big Spring, Texas	Refinery	<u>Shutdown</u>
Chevron	Pasadena, Texas	Refinery	<u>Shutdown</u>
CITGO	Corpus Christi, Texas	Refinery	<u>Restarting</u>
Delek	Tyler, Texas	Refinery	<u>Operating Issues</u>
ExxonMobil	Beaumont, Texas	Refinery	<u>Restarting</u>
ExxonMobil	Baytown, Texas	Refinery	<u>Shutdown</u>
Flint Hills	Corpus Christi, Texas	Refinery	<u>Shutdown</u>
LyondellBasell	Houston, Texas	Refinery	<u>Reduced rates</u>
Marathon Petroleum	Galveston Bay, Texas	Refinery	<u>Restarting</u>
Motiva	Port Arthur, Texas	Refinery	<u>Restarting</u>
Phillips 66	Sweeny, Texas	Refinery	<u>Shutdown</u>
San Antonio Refinery	San Antonio, Texas	Refinery	<u>Shutdown</u>
Shell	Deer Park, Texas	Refinery	<u>Shutdown</u>
Total	Port Arthur, Texas	Refinery	<u>Shutdown</u>
Valero	Corpus Christi, Texas	Refinery	<u>Power outage</u>

Alon USA	Big Spring, Texas	Refinery	<u>Shutdown</u>
Chevron	Pasadena, Texas	Refinery	<u>Shutdown</u>
CITGO	Corpus Christi, Texas	Refinery	<u>Restarting</u>
Delek	Tyler, Texas	Refinery	<u>Operating Issues</u>
ExxonMobil	Beaumont, Texas	Refinery	<u>Restarting</u>
ExxonMobil	Baytown, Texas	Refinery	<u>Shutdown</u>
Flint Hills	Corpus Christi, Texas	Refinery	<u>Shutdown</u>
LyondellBasell	Houston, Texas	Refinery	<u>Reduced rates</u>
Marathon Petroleum	Galveston Bay, Texas	Refinery	<u>Restarting</u>
Motiva	Port Arthur, Texas	Refinery	<u>Restarting</u>
Phillips 66	Sweeny, Texas	Refinery	<u>Shutdown</u>
San Antonio Refinery	San Antonio, Texas	Refinery	<u>Shutdown</u>
Shell	Deer Park, Texas	Refinery	<u>Shutdown</u>
Total	Port Arthur, Texas	Refinery	<u>Shutdown</u>
Valero	Corpus Christi, Texas	Refinery	<u>Power outage</u>
Valero	Houston, Texas	Refinery	<u>Flaring</u>
Valero	Sunray, Texas	Refinery	<u>Flaring</u>
Valero	Port Arthur, Texas	Refinery	<u>Process upset</u>
Phillips 66	Belle Chasse, Louisiana	Refinery	<u>Shutdown</u>
Phillips 66	Lake Charles, Louisiana	Refinery	<u>Shutdown</u>
BASF Total	Port Arthur, Texas	Steam cracker	<u>Shutdown</u>
Chevron Chemical	Phillips Cedar Bayou, Texas	Steam cracker	<u>Shutdown</u>
Chevron Chemical	Phillips Sweeny, Texas	Steam cracker	<u>Shutdown</u>
Chevron Chemical	Phillips Port Arthur, Texas	Steam cracker	<u>Process upset</u>
Dow	Freeport, Texas	Steam cracker	<u>Reduced rates</u>
Dow	Orange, Texas	Steam cracker	<u>Shutdown</u>
Eastman	Longview, Texas	Steam cracker	<u>Shutdown</u>

ExxonMobil		Beaumont, Texas	Steam cracker	<u>Restarting</u>
ExxonMobil		Baytown, Texas	Steam cracker	<u>Restarting</u>
Formosa Corporation USA	Plastics	Point Comfort, Texas	Steam cracker	<u>Shutdown</u>
Indorama		Port Neches, Texas	Steam cracker	<u>Process upset</u>
LyondellBasell		Corpus Christi, Texas	Steam cracker	<u>Shutdown</u>
LyondellBasell		Channelview, Texas	Steam cracker	<u>Force majeure</u>
LyondellBasell		La Porte, Texas	Steam cracker	<u>Shutdown</u>
Motiva		Port Arthur, Texas	Steam cracker	<u>Shutdown</u>
Sasol		Lake Charles, Louisiana	Steam cracker	<u>Restarting</u>
Westlake Partners	Chemical	Lake Charles, Louisiana	Steam cracker	<u>Shutdown</u>
Indorama		Westlake, Louisiana, US	Steam cracker	<u>Shutdown</u>
Braskem Idesa		Coatzacoalcos, Mexico	Steam cracker	<u>Shutdown</u>

^a According to market sources; may not be confirmed by company

Polyethylene plant news

Outages

Company	Location	Capacity (tonnes /year)	Status
ExxonMobil	Mont Belvieu, Texas	2,400,000 (LLDPE), 240,000 (HDPE)	<u>Restart under way</u> , <u>PE sales allocation</u>
ExxonMobil	Beaumont, Texas	1, 3 77 ,000 (LL DPE) , 250,000 (LDPE)	<u>Restart under way</u> , <u>PE sales allocation</u>
Formosa	Point Comfort, Texas	693,000 (HDPE) , 765,000 (LLDPE), 400,000 (LDPE)	<u>All PE plants shut down</u> , <u>Force majeure declared</u>
Chevron Phillips	Cedar Bayou, Texas	520,000 (LLDPE), 280,000 (LDPE)	<u>Site shutdown</u> , <u>Force majeure declared</u>
Chevron Phillips	Sweeny, Texas	500,000 (LLDPE), 500,000 (HDPE)	<u>Site shutdown</u>

			<u>Force majeure declared</u>
LyondellBasell	Matagorda, Texas, La Porte, Texas, Chocolate Bayou, Texas Victoria, Texas	Combined : 1.85 m (HDPE), 272,000 (LLDPE), 110,000 (LDPE)	<u>Force majeure declared from US Gulf sites</u>
LyondellBasell	Clinton, Iowa Morris, IL	Combined : 445,000 (LDPE), 320,000 (LLDPE), 260,000 (HDPE)	<u>Force majeure lifted</u>
Chevron Phillips	Pasadena, Texas Orange, Texas	Combined : 1.13m (HDPE), 300,000 (LLDPE)	<u>Plant shutdowns , Force majeure declared</u>
INEOS	La Porte, Texas	795,000 (HDPE)	<u>Force majeure declared</u>
Dow	Orange, Texas	270,000 (LDPE)	<u>Plant shutdown</u>
CP Chem/INEOS	Cedar Bayou, Texas	350,000 (HDPE)	<u>O1 turnaround</u>
Westlake	Longview, Texas and Lake Charles, Louisiana	Combined: 700,000 (LDPE), 485,000 (LLDPE)	<u>Operating rates reduced</u>
Braskem Idesa	Coatzacoalcas, Mexico	750,000 (HDPE), 300,000 (LDPE)	<u>Feedstock shortage</u>

New Capacities

Company	Location	Capacity (tonnes /year)	Status
Sasol	Lake Charles, Louisiana	420,000 (LDPE)	<u>Beneficial operations achieved</u>
Formosa	Point Comfort, Texas	400,000 (LDPE)	<u>Plant start-up</u>

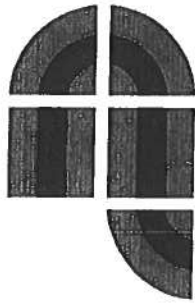
2010

Valero		Houston, Texas	Refinery	<u>Flaring</u>
Valero		Sunray, Texas	Refinery	<u>Flaring</u>
Valero		Port Arthur, Texas	Refinery	<u>Process upset</u>
Phillips 66		Belle Chasse, Louisiana	Refinery	<u>Shutdown</u>
Phillips 66		Lake Charles, Louisiana	Refinery	<u>Shutdown</u>
BASF Total		Port Arthur, Texas	Steam cracker	<u>Shutdown</u>
Chevron Phillips Chemical		Cedar Bayou, Texas	Steam cracker	<u>Shutdown</u>
Chevron Phillips Chemical		Sweeny, Texas	Steam cracker	<u>Shutdown</u>
Chevron Phillips Chemical		Port Arthur, Texas	Steam cracker	<u>Process upset</u>
Dow		Freeport, Texas	Steam cracker	<u>Reduced rates</u>
Dow		Orange, Texas	Steam cracker	<u>Shutdown</u>
Eastman		Longview, Texas	Steam cracker	<u>Shutdown</u>
ExxonMobil		Beaumont, Texas	Steam cracker	<u>Restarting</u>
ExxonMobil		Baytown, Texas	Steam cracker	<u>Restarting</u>
Formosa Corporation USA	Plastics	Point Comfort, Texas	Steam cracker	<u>Shutdown</u>
Indorama		Port Neches, Texas	Steam cracker	<u>Process upset</u>
LyondellBasell		Corpus Christi, Texas	Steam cracker	<u>Shutdown</u>
LyondellBasell		Channelview, Texas	Steam cracker	<u>Force majeure</u>
LyondellBasell		La Porte, Texas	Steam cracker	<u>Shutdown</u>
Motiva		Port Arthur, Texas	Steam cracker	<u>Shutdown</u>
Sasol		Lake Charles, Louisiana	Steam cracker	<u>Restarting</u>
Westlake Partners	Chemical	Lake Charles, Louisiana	Steam cracker	<u>Shutdown</u>
Indorama		Westlake, Louisiana, US	Steam cracker	<u>Shutdown</u>
Braskem Idesa		Coatzacoalcas, Mexico	Steam cracker	<u>Shutdown</u>

* According to market sources; may not be confirmed by company

Polypropylene plant news

2020



**NORTHWEST LININGS &
GEOTEXTILE PRODUCTS, Inc.**

"Helping to Protect the Environment"

21000 77th Avenue South
Kent, WA 98032

(253) 872-0244 • (800) 729-6954

FAX: (253) 872-0245

<http://www.northwestlinings.com>

3/24/2021

To: City of Cheyenne, TJ Barttelbort
Fm: Northwest Linings, Chris Stahl

Re: Happy Jack Landfill Phase 2 Cells 1 & 2 _ Force Majeure/Resin Price Impact Notice

In recent months, the volatility of the resin market has increased as suppliers are experiencing a higher demand than their supply can accommodate. A decline in worldwide production coupled with demand for spun bound products to counter the COVID-19 pandemic have made procurement of these basic feed stocks for these products difficult and uncertain. This lack of market availability and recent extreme winter weather along the Gulf Coast, has created an even larger force majeure impacting the pricing and availability of resin. Because of this Force Majeure, geosynthetic manufactures can not currently guarantee pricing or production lead times for products ordered containing polypropylene and polyethylene.

Please be advised, in the event resin pricing increases prior to arrival at manufactures facility, the customer will be notified and provided with a revised quotation. The customer is responsible for returning a revised purchase order/change order acknowledging acceptance of price adjustment.

Northwest Linings is committed to providing the highest quality products, at competitive prices, in a timely manner as possible. We value your business and thank you for your understanding during these times of raw material volatility.

APPROVED

By Alessandra at 10:31 am, Oct 19, 2020

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. S-6-21

Contract No. 7258

THIS AGREEMENT, entered into this 9th day of November, 2020, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and NORTHWEST LININGS & GEOTEXTILE PRODUCTS, INC., hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all [REDACTED] materials, [REDACTED] and services, including [REDACTED] and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "Happy Jack Landfill Phase 2, Cells 1 and 2 Construction and Cell 3 Excavation Earthworks (Geosynthetics Procurement Base Bid)" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: Addendum One (1), dated September 22, 2020, Addendum Two (2), dated September 23, 2020, Addendum Three (3), dated September 28, 2020, Addendum Four (4), dated October 5, 2020.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by June 30, 2021, and in accordance with the milestones listed in the Bidding Documents, General Conditions, Part 15.00, Time for Completion. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of Four Hundred Five Thousand, Four Hundred Eighty-Three Dollars (\$405,483.00). In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established

annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

- b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §15-1-113(h). Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; [REDACTED] [REDACTED] Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|-----------------------------|--------------------------------------|
| 1. This Agreement; | 6. General Conditions and Insurance; |
| 2. Addenda; | 7. Supplemental Conditions; |
| 3. Invitation for Bids; | 8. Part IV Forms & Notices; |
| 4. Instructions to Bidders; | 9. Specifications and Special |
| 5. Signed Bid Proposal; | Provisions; and |
| | 10. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

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IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

Kylie N. Soden
~~Kristina R. Jones, City Clerk~~
Kylie N. Soden, Deputy City Clerk

CITY OF CHEYENNE, WYOMING

Marian J. Orr
Marian J. Orr, Mayor

Notary or Corporation Secretary.

SUBSCRIBED AND SWORN TO BEFORE ME

this 1st day of Dec, 2020

by Karen Tagart

My Commission expires: 1/8/2024



Northwest Linings & Geotextile Products, Inc.

Contractor

By

PLAIST MANALIER
Title

20824 77th Ave S
Kent, WA 98032

Approved as to
form only:

ant
Date: 1/15/21

CITY OF CHEYENNE
CONTRACT MODIFICATION

Contract Modification: #1
Project: Happy Jack Landfill Phase 2, Cells 1 and 2 Construction and
Cell 3 Excavation Earthworks (Geosynthetic Procurement Base Bid)
Project Number: Contract # 7258
Contractor: Northwest Linings & Geotextile Products, Inc.
Date Prepared: January 14, 2021

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Design Engineer omitted Liner quantities for the leachate trench. This modification is for the additional material and shipping.

II. New Contract Items

Furnish 60 mil HDPE Geomembrane (double-sided textured), Geosynthetic Clay Liner (GCL), 12 oz/sy Nonwoven Geotextile Fabric, and 16 oz/sy Nonwoven Geotextile Fabric.

III. Schedule

No change to contract schedule.

IV. Summary

Original Contract Amount	\$405,483.00
Previous Modifications	\$0
Contract Amount Prior to this Modification	\$405,483.00
This Modification	\$29,726.76
New Contract Amount	\$435,209.76

V. Approvals

DATE: _____

City of Cheyenne

Mayor Patrick Collins

/_____
/ATTEST: City Clerk Kristina F. Jones

Recommend approval by City Project Manager / Accepted by Consultant

TABLE 1. GEOSYNTHETIC PROCUREMENT AND INSTALLATION QUANTITY CHANGES
HAPPY JACK LANDFILL, CHEYENNE, WYOMING

Geosynthetics Procurement - Northwest Linings & Geotextile Products, Inc.										
Bid Item	Bid Item Description	Unit	Original Contract Values			New Contract Values			Total Price	Net Change
			Quantity	Unit Price	Total Price	Quantity	Unit Price	Total Price		
1	Furnish 60 mil HDPE Geomembrane (double-sided textured)	SF	591,000	\$0.319	\$188,529.00	633,880	\$0.3227	\$204,553.08	\$204,553.08	\$16,024.08
2	Furnish Geosynthetic Clay Liner (GCL)	SF	591,000	\$0.357	\$210,987.00	626,400	\$0.3587	\$224,689.68	\$224,689.68	\$13,702.68
3	Furnish 12 oz/sy Nonwoven Geotextile Fabric	SF	9,500	\$0.270	\$2,565.00	9,500	\$0.270	\$2,565.00	\$2,565.00	\$0.00
4	Furnish 16 oz/sy Nonwoven Geotextile Fabric	SF	13,500	\$0.252	\$3,402.00	13,500	\$0.252	\$3,402.00	\$3,402.00	\$0.00
Total Contract Amount					\$405,483.00					
Total Amended Contract Amount										
Requested Geosynthetics Procurement Contract Increase								\$ 435,209.76		
								\$ 29,726.76		